

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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ERIC LUGO, SEVERO DIAZ, RAMON SEARLES,

SUMMONS

Plaintiffs, Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, NYPD OFFICER EDUARD
LUCERO, Shield No. 12992; NYPD POLICE OFFICERS
JOHN/JANE DOE Numbers 1-10,

Plaintiffs designate Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 17, 2022

Yours, etc.

C. Cass Luskin

C. CASS LUSKIN, ESQ.
SHULMAN AND HILL PLLC
Attorneys for Plaintiffs
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(212)-203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER EDUARD LUCERO, 40th PCT, 257 Alexander Ave, Bronx, NY 10454

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

ERIC LUGO, SEVERO DIAZ, RAMON SEARLES,

INDEX NO.:

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER EDUARD
LUCERO Shield No. 12992; NYPD POLICE OFFICERS
JOHN/JANE DOE Numbers 1-10,

JURY TRIAL DEMANDED

Defendants.

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Plaintiffs ERIC LUGO, SEVERO DIAZ, and RAMON SEARLES, by their attorneys, C. Cass Luskin & Associates, PLLC, as and for their Verified Complaint herein, allege upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and by the common law and the laws of the State of New York. On March 25, 2021, at approximately 6:30 p.m., plaintiffs LUGO, DIAZ and SEARLES, while lawfully inside the building at 2535 3rd Avenue, County of Bronx, State of New York, were subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. Plaintiffs suffered bruising and injuries to their wrists as well as mental and emotional injury. Plaintiffs were unlawfully imprisoned at the 40th Precinct Police Station and Bronx Central Bookings for approximately 30 hours before release and had to attend a court date thereafter before their case was dismissed and sealed. Plaintiffs were therefore deprived of their rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, maliciously prosecuted and negligently inflicted emotional distress in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff ERIC LUGO is a resident of the state of New York.
3. Plaintiff SEVERO DIAZ is a resident of the state of New York.

4. Plaintiff RAMON SEARLES is a resident of the state of New York
5. NYPD OFFICER EDUARD LUCERO Shield No. 12992 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
6. NYPD OFFICER EDUARD LUCERO Shield No. 12992, was at all times relevant herein, assigned to the 40th Precinct.
7. NYPD OFFICER EDUARD LUCERO Shield No. 12992; is being sued in his individual and official capacities.
8. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
9. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 40th Precinct.
10. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.
11. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
12. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
13. Plaintiffs, in furtherance of their causes of action brought pursuant to New York State law, filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.
14. In accordance with New York State law and General Municipal Law Section 50, plaintiffs testified at hearings held pursuant to General Municipal Law Section 50-H in August of 2021.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

16. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

17. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

18. On March 25, 2021, at around 6:30 P.M., all the Plaintiffs were in a “pop up” event space located at 2535 3rd Avenue, County of Bronx, State of New York.

19. None of the Plaintiffs had been present for longer than 20 minutes before defendant Officers arrived on scene.

20. There were dozens of other people in the event space, as well as a bar and several tables.

21. All three Plaintiffs are strangers to each other. Plaintiff LUGO knew one other person in the event space, as did Plaintiff DIAZ.

22. Without warning, approximately 30 police officers charged into the event space, screaming at Plaintiffs to “put your fucking hands up!” and “shut up!”

23. Terrified and confused, plaintiffs complied with police instructions and did not resist arrest or say anything to officers.

24. Plaintiffs were handcuffed using zip ties behind their backs and were pat-down searched by defendant officers.

25. At no time relevant herein did Plaintiffs commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiffs of committing a crime or violating the law in any way.

26. Nevertheless, Plaintiffs were unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, and then unlawfully searched.

27. Only Plaintiff Lugo spoke to defendant Officers, asking them to loosen the zip ties as they were causing him pain and one of his hands had turned red.

28. Defendant Officer John Doe responded to Plaintiff Lugo’s request by saying “Fuck you.”

29. Plaintiffs also heard the defendant Officers asking for the owner or the person who was in charge to step forward and admit it. When nobody stepped forward, a defendant Officer announced that they were taking “everybody” as a result.

30. At no point did Defendant Officers recover any drugs, weapons, or other illegal contraband from Plaintiffs or from a location that was in Plaintiffs’ possession, custody, or control.

31. After being zip-tied, Plaintiffs were led downstairs to a police van, which transported them to the 40th Precinct.

32. At the 40th Precinct, Plaintiffs were unlawfully searched, fingerprinted, had their property taken from their person, and were bundled into a holding cell.

33. Plaintiffs remained at the 40th Precinct for approximately eight hours before being transported to Central Bookings in the Bronx.

34. At Bronx Central Bookings, Plaintiffs were photographed and again placed into a holding cell.

35. Approximately 10-15 other people from the event hall were arrested and were in the holding cells with Plaintiffs.

36. While Plaintiffs were being unlawfully detained, defendant Officers were in communication with the Early Case Assessment Bureau at the Bronx District Attorney’s Office.

37. Defendant Officers made false statements to the Bronx District Attorney’s Office, including false allegations that plaintiffs were in possession of a quantity of illegal drugs.

38. Defendant officer LUCERO signed this false complaint on March 26, 2021, at or around 1:45PM.

39. As a result of defendant officers’ false representations, all Plaintiffs were charged with felony Possession of a Controlled Substance.

40. All of the Plaintiffs were released on their own recognizance as soon as they went before a judge for arraignment, but they were required to return to court.

41. On or about May 11, 2021, all charges were dismissed and sealed against all Plaintiffs.

42. Plaintiff Lugo further suffered economic injury in that he was unable to work on Friday, March 26.

43. Plaintiff Lugo is a barber, and Friday is his most popular day; the lost wages for that one-day amount to approximately \$500.

44. Some of the police officer defendants observed the violation of Plaintiffs' rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiffs the right to due process and a fair trial.

45. The unlawful search, seizure, use of excessive force, false arrest and imprisonment, and denial of Plaintiffs' right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

46. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

47. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiffs' freedom of movement through means intentionally applied.

48. The conduct of defendants in stopping, frisking, and searching Plaintiffs was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

49. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

50. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

51. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

52. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

53. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiffs to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiffs' right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

54. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION

False Arrest and Imprisonment

55. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

56. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiffs and, in fact, confined Plaintiffs, and Plaintiffs were conscious of the confinement. In addition, Plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

57. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

61. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

62. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiffs.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiffs and violated Plaintiffs' statutory and common law rights as guaranteed Plaintiffs by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION
Negligent Hiring, Retention, Training and Supervision

70. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION
Failure to Intervene

73. Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

74. The defendants that did not physically touch Plaintiffs but were present when other officers violated Plaintiffs' Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiffs, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiffs' liberty was restricted for an extended period of time, they was put in fear of their safety, and they was humiliated and subject to unlawful search and other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION **Malicious Prosecution**

81. Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein

82. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

83. Defendants commenced and continued a criminal proceeding against the plaintiffs.

84. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiffs and for the charges for which they were prosecuted.

85. The prosecution and criminal proceedings terminated in Plaintiffs' favor on the aforementioned dates.

86. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiffs' Fourth Amendment rights.

87. As a direct and proximate result of such acts, defendants deprived Plaintiffs of their rights under the laws of the State of New York and the United States Constitution.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiffs sustained injuries, including but not limited to emotional, physical, economic, and psychological injuries.

EIGHTH CAUSE OF ACTION**Violation of Fourth And Fourteenth Amendment Rights:****Denial of Right to Fair Trial and Due Process**

90. The Plaintiffs repeat and reallege the foregoing paragraphs as if the same were fully set forth at length herein.

91. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

92. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

93. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

94. In withholding/creating false evidence against Plaintiffs, and in providing/withholding information with respect thereto, Defendants violated Plaintiffs' constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

95. As a result of the foregoing, Plaintiffs sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

98. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional and psychological injuries.

JURY DEMAND

99. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff LUGO, DIAZ and SEARLES demand judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiffs recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 17, 2022

By: C. Cass Luskin
C. CASS LUSKIN, ESQ.
SHULMAN AND HILL PLLC
Attorneys for Plaintiff
1 State Street, 15th FL
New York, New York 10004
(212)-203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER EDUARD LUCERO, 40th PCT, 257 Alexander Ave, Bronx, NY 10454

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the

State of New York, affirms the following to be true under the penalties of perjury:

I am a member of the law firm of **SHULMAN AND HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiffs is because Plaintiffs does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 17, 2022

C. Cass Luskin
C. CASS LUSKIN